



TERMS AND CONDITIONS – FIRE ALARM

1. We undertake to see that your fire alarm system is correctly maintained, however for addressable systems, the client must provide us with the panel manual, software and any connecting cable / accessories for reprogramming the system if required.
2. This annual agreement will continue to be in force unless and until it is terminated by either party. Either party may terminate this agreement by giving the other a thirty (30) days' notice in writing however the annual service charge is non-refundable.
3. We reserve the right to curtail further services without notice in the event of non-payment as per our normal trading terms, which are 30 days from date of statement after which interest is charged at 3% per month on all overdue accounts.
4. It is mutually understood that any discrepancies in the total number of units shown on this agreement and / or serviced at the premises will be automatically adjusted on our Service Records and the charges per service will be adjusted accordingly.
5. During our inspection and maintenance, minor repairs will be carried out and charged according to the prices ruling at that time. Any major repairs will however be referred to you for approval prior to commencement of the work.
6. Whilst every precaution will be taken during service and / or installing equipment, this work is undertaken purely on your own responsibility as no liability will be accepted by us for damage to any equipment / walls / ceilings or other items.
7. If a service cannot be carried out through no fault of this company such as not acknowledging e-mail notifications, appointment confirmations, refusal of admission by your staff, closure of premises or non-availability of your personnel to escort our team during their service etc. It will be deemed that we have met our service obligation unless we have had prior notice in writing requesting the service to be re-scheduled.
8. Service carried out by request as in the case of a missed service (Para. 7) or for reasons of equipment having been used will be charged as a special service under normal contract rates.
9. All services sheets should be signed by the client over a rubber stamp. If a client is not satisfied with the service, he should still sign the sheet inserting his comments on the service sheet which is always in duplicate. In the case that no one is able to sign, or will not comply for whatever reason to this condition we will consider that we have completed our obligation as far as this agreement is concerned.
10. Any persons tampering or interfering with fire equipment / fire alarm other than that for the purposes of use in a real-life fire situation will absolve NIMROD from any liability whatsoever.
11. If any fire alarm has been activated whether legitimately or accidentally, NIMROD should be informed in writing / by e-mail and a special service should be requested in order to maintain your equipment in good working condition.
12. The client must let us know in writing, whether any special conditions exist; such as the system being wired to the fire department or police, or to whom our technicians should report to etc. as Nimrod will not be responsible financially or otherwise for any delays or interruptions of work and / or production loss while our team is carrying out the maintenance / installation.
13. The client is responsible for informing all occupants of the premises when testing of the fire alarm system is to be carried out.
14. Nimrod reserves the right to re-negotiate any terms and service charges under circumstances entailing extra work not accounted for on this contract.
15. Our bi-annual upcountry maintenance services are scheduled during the months of April / May and October / November – Special trips on any other month can be arranged for an extra charge.
16. Up-country emergency calls will be subject to extra transport costs, accommodation and out of Nairobi expenses at the discretion of the company. All charges are subject to VAT.
17. Additional emergency calls are charged at 3000/- per visit, plus 2000/- per hour of part thereof within Nairobi and surrounding areas. All charges are subject to VAT.
18. Extra charges may be applicable for equipment not readily accessible and where we may require any scaffolding or any other special equipment to access the units such as Detectors placed extremely high in warehouses / buildings.

WE AGREE TO THE ABOVE TERMS AND CONDITIONS

Name of Signatory _____

Signature _____

Designation _____

Company Rubber Stamp _____ Date _____